

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Lawrence L. Berry) **Docket No. 2020-11**
License No. 068.0000390)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Respondent Lawrence L. Berry, by and through his counsel, Edward Adrian, Esq., who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the “Board”) has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Licensed Clinical Mental Health Counselors; issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearing conducted, it finds that Respondent has engaged in unprofessional conduct. 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Lawrence Berry (“Respondent”) of Westfield, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor (“LCMHC”) under license number 068.0000390. This license was originally issued on May 21, 1998 and expires on January 31, 2021.
3. During the relevant period, Respondent maintained a private practice to provide mental health counseling to clients. Respondent’s practice was initially located in Newport, Vermont but then relocated to his home office.
4. Respondent provided counseling services to an adult female client for approximately eight (8) years, a counseling relationship that ended in 2019 (“Client 1”).
5. During their counseling relationship, Respondent and Client 1 would say “I love you” to each other in friendship.
6. During their counseling relationship, Respondent went to church with Client 1 and would go for coffee with Client 1 to a local coffee shop.

7. Respondent often went for coffee with his clients to a local coffee shop in Newport.
8. During the last several years of their counseling relationship, Respondent began sharing personal details about his own life, marriage, and relationships with Client 1.
9. In the last several years of their counseling relationship, Respondent asked Client 1 if she found him attractive and if she would have gone out with him if they had known each other when they were much younger.
10. In February 2019, Respondent told Client 1 that he was falling in love with her.
11. In February 2019, Respondent said to Client 1, "I just told you that I love you and you're going down to see your old boyfriend."
12. Client 1 terminated the counseling relationship after Respondent told her that he was falling in love with her.
13. On February 28, 2019, Respondent texted Client 1, apologizing, reiterating his deeper feelings for her, attempting to explain himself, expressing his craving for deep friendship, and referring to her as his friend.
14. On the evening of March 4, 2019, Respondent texted Client 1 again, asking if she was going to come to her standing appointment, asking for her forgiveness for his mistake, asking for an opportunity to explain so that she would "feel safer again."
15. Client 1 responded to Respondent on March 4, 2019 stating that she would not be coming in for her appointment, to which Respondent asked, "Will we be able to talk at all?"
16. Respondent continued in efforts to engage with Client 1 via text.
17. In April 2019, Client 1 informed Respondent that she did not want any type of relationship with him, therapeutic or otherwise.
18. In June 2019, Respondent approached Client 1 in public at a church retreat stating his belief that they should talk. When Client 1 expressed that they had nothing to talk about, he followed Client 1, who was walking with her children, to the parking lot saying that he believed they could "work this out." Client 1 told Respondent to leave her alone and stay away from her and her children.

Violation One: 26 V.S.A. § 3271(a)(5) Harassing, intimidating, or abusing a client.

19. Paragraphs 2 through 18 are incorporated herein.
20. As a Licensed Clinical Mental Health Counselor, Respondent is prohibited from harassing, intimidating, or abusing a client.
21. Paragraphs 4 through 18 above demonstrate that Respondent harassed or intimidated Client 1.
22. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(5).

Violation Two: 26 V.S.A. § 3271(a)(6) Entering into an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

23. Paragraphs 2 through 18 above are incorporated herein.
24. As a Licensed Clinical Mental Health Counselor, Respondent must refrain from entering an additional relationship with a client that might impair the counselor's objectivity or otherwise interfere with the counselor's professional obligations.
25. Paragraphs 4 through 18 above demonstrate that Respondent entered an additional relationship with Client 1 which impaired Respondent's objectivity and interfered with Respondent's professional obligations.
26. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Three: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

27. Paragraphs 2 through 18 above are incorporated herein.
28. As a Licensed Clinical Mental Health Counselor, Respondent is required by law to maintain professional boundaries.
29. Paragraphs 4 through 18 above demonstrate that Respondent failed to maintain professional boundaries with Client 1.
30. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(26).

Violation Four: 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

- 31. Paragraphs 2 through 18 above are incorporated herein.
- 32. As a Licensed Clinical Mental Health Counselor, Respondent is required to exercise his own independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession
- 33. Paragraphs 4 through 18 above demonstrate that Respondent failed to exercise his own independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession.
- 34. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Violation Five: 3 V.S.A §129a(b)(1) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care.

- 35. Paragraphs 2 through 18 above are incorporated herein.
- 36. As a Licensed Clinical Mental Health Counselor, Respondent is required to provide safe and acceptable patient or client care.
- 37. Paragraphs 4 through 18 above demonstrate that Respondent failed to provide safe and acceptable care to Client 1.
- 38. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Six: 3 V.S.A §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice.

- 39. Paragraphs 2 through 18 above are incorporated herein.

40. The essential standards of acceptable and prevailing practice require Licensed Clinical Mental Health Counselors to avoid entering dual personal relationships with clients. *See* American Counseling Association (“ACA”) Code of Ethics, Standard A.5.d. (“Counselors are prohibited from engaging in counseling relationships with friends or family members with whom they have an inability to remain objective.”); *see also* National Board for Certified Counselors Code of Ethics, Directive 5 (“NCCs shall not engage in harmful multiple relationships with clients.”).
41. Paragraphs 4 through 18 above demonstrate that Respondent failed to conform to this essential standard of acceptable and prevailing practice by entering a dual relationship with Client 1.
42. The essential standards of acceptable and prevailing practice require Licensed Clinical Mental Health Counselors to respect the privacy of their clients and to protect the confidential information of clients. *See* ACA Code of Ethics, Standard B.1.c.
43. Paragraphs 7, 8, and 18 above demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by meeting with clients in public.
44. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Understandings

45. Respondent admits that the facts above are true and that the conditions below are necessary to protect the public.
46. Respondent understands that the Board must review and accept the terms of the Order set forth below and that if the Board rejects all or any portion of the Order, then this entire document shall be null and void.
47. Respondent waives any notification period and requests that this be heard at the next available meeting of the Board. Respondent specifically waives any claim that any disclosures made to the Board during the Board’s review of this agreement prejudice Respondent’s right to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a hearing on the merits before the same Board.
48. Respondent has read and reviewed this document fully and agrees that it contains the entire agreement between the parties.
49. This Stipulation and Consent Order is entered into voluntarily by Respondent after the opportunity to consult with legal counsel. Respondent has not been coerced by anyone into signing this Stipulation and Consent Order.

50. Respondent voluntarily waives his right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
51. Respondent is of sound mind and is not under the influence of drugs or alcohol when signing this Stipulation and Consent Order.
52. Respondent agrees that the Order set forth below may be entered by the Board.
53. Respondent understands that he is responsible for all compliance costs associated with this Stipulation and Consent Order.

ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's Licensed Clinical Mental Health Counselor license is hereby **REPRIMANDED**.
- B. Respondent's Licensed Clinical Mental Health license is hereby **CONDITIONED** commencing with the date of entry of this Stipulation and Consent Order. The conditions are as follows:
 1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."
 2. Length of Time Conditions Imposed: The conditions shall remain in place until Respondent has completed all conditions as ordered. Respondent shall be subject to the conditions until Respondent completes **a minimum of two (2) years** of LCMHC practice in which he works **at least** twenty (20) hours every two (2) weeks as a LCMHC. Hours of fewer than twenty (20) hours every two (2) weeks shall be credited on a prorated basis. Respondent shall be prohibited from working as a LCMHC for more than forty (40) hours per week during the conditioned period.
 3. Required Coursework: Respondent shall, within one hundred and eighty (180) days following the entry of this Order, at his own expense, complete nine (9) hours of pre-approved online courses, which must include education on ethics, boundaries, dual relationships, ethical considerations while practicing in a small community, risk management, and counseling trauma victims. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.

Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.

4. Notification to Employers/Program Director: Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices as a LCMHC and inform them of Respondent's conditional license status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Case Manager for approval an employer agreement form, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
5. Reports from Employers/Program Director. Within one (1) month of the date of this order or within one (1) month of commencing employment in a work setting other than his solo private practice and **monthly** thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit an evaluation of Respondent's work performance and attendance during that month. These reports shall be submitted in writing on forms issued or approved by the Enforcement Case Manager and shall indicate satisfactory performance and attendance.
6. Supervision. Respondent must have general supervision of his practice by a pre-approved LCMHC licensed in Vermont or other pre-approved licensed mental health practitioner, who must be in good standing with the State of Vermont.

In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at his own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about transference/countertransference, particularly with challenging and/or long-term clients, as well as the therapeutic rationale for various clinical decisions, such as continuing treatment with a client long-term, frequency of sessions, meeting with a client outside of the office, self-disclosure, ethical boundaries and other ethical and clinical issues. Respondent's consultation with his Supervisor shall take place no less than once per week by videoconference (or similar) or in person. The pre-approved Supervisor shall provide monthly reports identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical violations, boundary transgressions, or other practice issues or concerns. Respondent shall be responsible for locating a Supervisor and sending the name, contact information, credentials and curriculum vitae of the proposed mentor to the Enforcement Case Manager as part of the pre-approval process.

7. Individual Counseling. Respondent shall engage in individual counseling with a professional pre-approved by the Board or designee who is qualified and experienced to provide mental health counseling. Once the counselor is approved and prior to their first meeting, Respondent shall provide the pre-approved counselor with a copy of the Independent Evaluation by Drs. Holt and Bowley. Respondent shall comply with the treatment plan and continue in individual counseling until such time as the pre-approved counselor certifies in writing to the Board that counseling is no longer necessary. Compliance with the treatment plan includes, but is not limited to, engaging in face-to-face meetings (either in-person or via a secure online platform) with the treating professional at the frequency recommended in the treatment plan.

Respondent shall authorize Respondent's treating professional to submit to the Case Manager **monthly** reports on forms issued by the Case Manager. The initial treatment plan and all revisions to the treatment plan must be included in the monthly reports to the Case Manager. Respondent shall authorize Respondent's treating professional to provide all information requested by the Case Manager, either orally or in writing, at any time during the period this Consent Order is in effect.

8. Out-of-State-Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval prior to Respondent practicing as a LCMHC outside the State of Vermont. If Respondent fails to receive such approval before practicing as a LCMHC outside the State of Vermont, none of the time spent practicing out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. Approval will be given for out-of-state LCMHC practice if the Director of Professional Regulation, in his or her sole discretion, finds that Respondent's planned out-of-state practice does not compromise the supervisory or protective purposes of this Stipulation and Consent Order.
9. Notification of Place of Employment/Personal Address/Telephone Number. Within five (5) days of the date of entry of this Consent Order, Respondent shall notify the Office of Professional Regulation, in writing, of his current place of employment, personal address, and telephone number, as well as the name of any mental health educational programs in which he is enrolled. Respondent shall further notify the Office of Professional Regulation, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.
10. Notification to Other States. In the event Respondent is licensed in a mental health profession in any other state(s), he must inform the licensing Board of the state(s) in which Respondent is licensed of the conditional status of his Vermont LCMHC license within thirty (30) days of the date of entry of this Order. If Respondent fails to provide such notification, it will be considered a violation of this Order.

11. License Renewal. If Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice as a LCMHC, Respondent must timely apply for renewal, pay the applicable fee and demonstrate that he has otherwise complied with the requirements for license renewal.

12. Costs. Respondent shall bear all costs of complying with this Consent Order.

13. Violation of this Order. Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

14. Completion of Conditional License Period. After the minimum conditional license period and completion of the required coursework, Respondent may petition to remove any or all conditions on his license. Respondent must present proof that he has fully complied with the terms of this Order.

C. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain a LCMHC license, for license renewal, and for license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

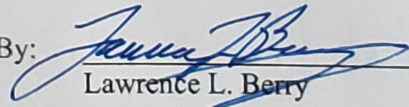
STATE OF VERMONT
SECRETARY OF STATE

Dated: 10/1/2020

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney

RESPONDENT

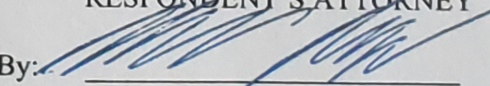
Dated: 10/1/20

By: 
Lawrence L. Berry

APPROVED AS TO FORM:

RESPONDENT'S ATTORNEY

Dated: 9/30/20

By: 
Edward Adrian, Esq.
Attorney for Respondent

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

Dated: October 15, 2020

By:

 E-SIGNED by Lynn Irwin
on 2020-10-15 10:54:38 EDT

Chairperson

Date of Entry: 10/15/2020